

The Union Duties Of Excise (Electricity) Distribution Act, 1980

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Union of India - Act

The Union Duties Of Excise (Electricity) Distribution Act, 1980

UNION OF INDIA

India

The Union Duties Of Excise (Electricity) Distribution Act, 1980

Act 14 of 1980

Published on 25 March 1980

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[Repealed by

The Union Duties Of Excise (Electricity) Distribution Repeal Act, 2006 (Act 30 of 2006)

on

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]

The Union Duties Of Excise (Electricity) Distribution Act, 1980

ACT NO. 14 OF 1980

1239.

[25th March, 1980]

An Act to provide for the payment out of the Consolidated Fund of India of sums equivalent to the net proceeds of Union duties of excise on electricity to the States to which the law imposing the duty extends and for the distribution of those

sums among those states in accordance with the recommendations of the Finance Commission, in its [Interim report dated the 14th day of november 1983]

[Substituted by Act 28 of 1984, Section 2 (w.e.f. 1-4-1984)]

BE it enacted by Parliament in the Thirty-first Year of the Republic of India as follows:-

1.

Short title and commencement.

(1)

This Act may be called the Union Duties of Excise (Electricity) Distribution Act, 1980.

(2)

It shall be deemed to have come into force on the 1st day of April, 1979.

2.

Definition.

In this Act, the expression "distributable Union duties of excise on electricity" means the net proceeds of Union duties of excise on electricity levied and collected, other than in Union territories, under the Central Excises and Salt Act, 1944 (1 of 1944.) and any other law for the levy and collection of such duty, unless the law earmarks the proceeds of the duty for any special purpose.

Explanation.--The expression "net proceeds" has the same meaning as in clause (1) of article 279 of the Constitution.

3.

[Payment to States of sums equivalent to the net proceeds of Unionduties of excise on electricity and distribution of the sums amongthem.

[Substituted by Section 3, Act 28 of 1984 (w.e.f. 1-4-1984)]

During the financial year commencing on the 1st day or April, 1984, there shall be paid, out of the Consolidated Fund of India, to the States sums equivalent to the distributable Union duties of excise on electricity levied and collected in that year and those sums shall be distributed, provisionally,to each of the States specified in column (1) of the Table below in such percentage as is set out against it in column (2).]

TABLE

1

2

State

Percentage

Andhra Pradesh

8.51

Assam

1.09

Bihar

5.74

Gujarat

9.66

Haryana

2.49

Himachal Pradesh

0.55

Jammu and Kashmi

1.15

Karnataka

7.05

Kerala

4.22

Madhya Pradesh

7.09

Maharashtra

19.38
Manipur
0.04
Meghalaya
0.11
Nagaland
0.04
Orissa
3.02
Punjab
3.54
Rajasthan
2.92
Sikkim
0.01
Tamil Nadu
7.71
Tripura
0.08
Uttar Pradesh
8.17
West Bengal
7.43.

4.

Payment to be charged on the Consolidated Fund of India.

The expenditure on the payments in pursuance of section 3 shall be charged on the Consolidated Fund of India.

5.

Power to make rules.

(1)

The Central Government may, by notification in the Official Gazette, make rules providing for the time at which and the manner in which, any payments under this Act are to be made, for the making of adjustments between one financial year and another and for any other incidental or ancillary matters.

(2)

Every rule made under this section shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

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